

Case No.5/2/2026

Mr. Wilbur William Mathee

15 Bellevue Street
Voorbrug
Cape Town
7100

Per email: info@ethichawks.co.za

Dear Mr. Wilbur William Mathee

COMPLAINT: MR. WIBUR WILLIAM MATHEE // MEDSCHEME HOLDINGS.

1. The above matter bears reference.
2. Kindly be advised that the B-BBEE Commission has assessed your complaint in terms of regulation 15(4) (a) of the Broad-Based Black Economic Empowerment Regulations and established that there is no merit in pursuing an investigation of your complaint on the basis that the complaint is not substantiated by evidence justifying an investigation.
3. In terms of section 13F of the Act, the B-BBEE Commission ("the Commission") is empowered to:
 - Oversee, supervise and promote adherence to the Act;
 - Investigate complaints relating to fronting practices;
 - Investigate any matter relating to B-BBEE compliance; and
 - Promote the objectives of broad-based black economic empowerment.

4. Upon assessment, the allegations raised by the Complainant primarily relate to **labour-related disputes, unfair discrimination, retaliation, job-title disputes, and salary grievances**. These matters fall within the jurisdiction of labour institutions such as the **CCMA**, the **Labour Court**, the **Department of Employment and Labour**, or the **South African Human Rights Commission**, and not within the mandate of the B-BBEE Commission.
5. The Complainant alleges that the Respondent downgraded their job title, misrepresented their position, and engaged in discrimination. However:
- The B-BBEE Act governs ownership, management control, skills development, enterprise and supplier development, and socio-economic development, not employment relationships.
 - The Act does not regulate remuneration disputes, CCMA disputes, unfair discrimination, or internal job grading systems.
 - Changes in job titles, as claimed, do not in themselves constitute fronting unless supported by evidence showing that the Respondent used the individual's profile to claim B-BBEE points.
6. The information submitted does not provide any verifiable evidence that Medscheme Holdings misrepresented its B-BBEE scorecard, used the Complainant's demographic profile for B-BBEE points, or submitted false information to a verification agency. No documentation, affidavits, or scorecard evidence has been provided by the Complainant to substantiate the allegation that the Respondent claimed Management Control points using the Complainant's credentials.
7. The allegation that the Complainant was appointed as a statutory committee chairperson and "exploited" for OHSA compliance relates to internal labour structuring, not B-BBEE misrepresentation.

8. The allegations of unfair discrimination, “weaponising disability,” salary deductions, and retaliation fall outside the scope of the B-BBEE Act and fall squarely under the Employment Equity Act, Labour Relations Act, and OHSA. The B-BBEE Commission does not adjudicate matters of discrimination, harassment, or employer misconduct unless there is a clear link to fronting practices as defined in section 1 of the Act.
9. The remedies requested by the Complainant (forensic investigation, discrimination findings, and compensation) fall outside the powers of the B-BBEE Commission, which does not award compensation, impose labour remedies, or rule on discrimination claims.
10. The B-BBEE Commission hereby advises that your complaint does not warrant an investigation and we will proceed to close the file on the matter. We have attached a copy of the Notice of the Non-Investigation (Form B-BBEE 11), issued in terms of regulation 15 (9) of the B-BBEE Regulations.
11. Should you wish to clarify any issues raised in this letter, please do not hesitate to contact the B-BBEE Commission at +27 12 394 1535 or mramare@beecommission.gov.za.

We trust that you will find the above in order.

Yours sincerely,

Ms Moipone Kgaboesele
Executive Manager
Investigations and Enforcement Division
Date: 30 March 2026